



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 14 judgments on Tuesday 22 October 2019 and 21 judgments and/ or decisions on Thursday 24 October 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 22 October 2019

[Venet v. Belgium \(application no. 27703/16\)](#)

The applicant, Lionel Venet, is a Belgian national who was born in 1979 and lives in Uccle (Belgium).

The case concerns proceedings in which Mr Venet unsuccessfully challenged his pre-trial detention.

In 2015 Mr Venet was charged with unlawful possession of drugs and remanded in custody at Saint-Gilles prison. He challenged the lawfulness of the detention order but the Pre-Trial Division confirmed the measure. The decision was subsequently upheld by the Indictments Division of the Court of Appeal.

Mr Venet appealed on points of law. The hearing before the Court of Cassation took place on 10 November 2015 at 9.30 a.m., in the absence of both Mr Venet and his lawyer. They claimed to have been informed too late: Mr Venet had received the notice late on 9 November and his lawyer on 10 November 2015 around noon. That same day the Court of Cassation dismissed the appeal.

Mr Venet subsequently complained, unsuccessfully, before the national courts, that he had been unable to attend the Court of Cassation hearing on 10 November 2015 because of the late notification. He alleged that his detention was incompatible with Article 5 of the Convention.

He was released in 2016 on grounds that have not been established.

Relying on Article 5 §§ 1 and 4 (right to liberty and security, right to a speedy decision on the lawfulness of detention) of the European Convention on Human Rights, Mr Venet complains that he was unable to attend the hearing of the Court of Cassation concerning his appeal against his pre-trial detention or to respond to the submissions of the advocate general.

[Deli v. the Republic of Moldova \(no. 42010/06\)](#)

The case concerns, on the one hand, an alleged dispute between a lawyer and a judge during a court hearing and the lawyer's fears of bias towards him and his client and, on the other hand, the judge's contention that he was attempting to maintain order in court faced with the lawyer's disruptive conduct.

The applicant, Teodor Deli, is a Moldovan national who was born in 1960 and lives in Chişinău.

On 15 June 2006 Mr Deli represented a party (X.) in civil litigation. According to Mr Deli, Judge B, hearing the case on his own, allowed opposing counsel to harass his client and when he tried to intervene, the judge was abusive, became threatening and finally found him in contempt.

The record of the hearing showed that Mr Deli had insulted opposing counsel and been disruptive. Mr Deli objected to the record, saying that it was not accurate and that the judge had ordered the court assistant not to note down their dispute. He never received a reply to these objections or a court decision addressing them.

During the hearing Mr Deli requested that the judge recuse himself. Another judge rejected the request on the same day because he found that the grounds relied on did not correspond to any grounds for challenging a judge under domestic law. Mr Deli then lodged a cassation appeal which was rejected by the Chişinău Court of Appeal. The appeal court, noting that Mr Deli had been summoned to its hearing on the case, upheld the lower court's finding, without giving further details.

The civil proceedings were subsequently settled.

Relying on Article 6 § 1 (right to a fair hearing), Mr Deli complains that Judge B. was not impartial and favoured the other party. He also alleges that the Chişinău Court of Appeal did not properly summon him or give enough reasons for rejecting his appeal.

Just Satisfaction

KIPS DOO and Drekalović v. Montenegro (no. 28766/06)

The case concerns the question of just satisfaction with regard to the authorities' refusal to issue the applicants a building permit for a shopping centre.

In its [principal judgment](#) of 26 June 2018 the Court held that there had been a violation of Article 6 § 1 (right to a fair hearing within a reasonable time) and of Article 13 (right to an effective remedy) taken together with Article 6 § 1, and a violation of Article 1 of Protocol No. 1 (protection of property) to the Convention and made awards in respect of non-pecuniary damage and costs and expenses.

The Court further held that the question of just satisfaction in so far as pecuniary damage was concerned was not ready for decision and reserved it for examination at a later date.

The Court will deal with this question in its judgment of 22 October 2019.

Just Satisfaction

Yaşar Holding A.Ş. v. Turkey (no. 48642/07)

The case concerned the transfer of management of Yaşarbank to the Deposit Guarantee Fund and the transfer of the bank's shares to that Fund.

Between 1994 and 1999 Yaşarbank was audited several times; the ensuing reports mentioned its financial difficulties and recommended a series of measures to improve and consolidate its situation. An auditor submitted a report on the bank's situation as of 30 September 1999, noting that continuing its banking activities would present a risk to the rights and interest of investors and savers and to the reliability and stability of the financial system; she considered that the bank's financial situation could no longer be consolidated.

The Council of Ministers decided to transfer the management of Yaşarbank and all its share options to the Guarantee Fund (apart from dividends). It further ordered the transfer of ownership of the shares to the Fund. On the date of the transfer 48.48 % of the shares in Yaşarbank were held by the applicant company.

The applicant company complained about the transfer of management of Yaşarbank and of its shares to the Guarantee Fund.

In its [judgment](#) on the merits of 4 April 2017, the Court found that there had been a violation of Article 1 of Protocol No. 1 (protection of property). It held that the question of the application of Article 41 (just satisfaction) was not ready for decision and reserved it for examination at a later date.

The Court will rule on this question in its judgment of 22 October 2019.

Thursday 24 October 2019

[Carrefour France v. France \(no. 37858/14\)](#)

The applicant company, Carrefour France, trades as a simplified limited company (SAS) under French law, with its registered office at Mondeville (France). The case concerns a judgment against the company finding it liable and ordering it to pay a fine for acts committed by the company Carrefour hypermarchés France in breach of the Commercial Code.

Carrefour France was the sole shareholder of Carrefour hypermarchés France, against which proceedings were brought before the Bourges Commercial Court, in 2006, by the Ministry of Economic Affairs, Finance and Industry, for contravening Article L. 442-6 of the Commercial Code on competition. The company was suspected of obtaining advantages from 22 of its suppliers that were manifestly disproportionate in relation to the services rendered.

In 2009, while the proceedings were still pending, the applicant company proceeded with the dissolution without liquidation of Carrefour hypermarchés France. The minutes of the decisions indicated in particular that the dissolution resulted in the transfer of the business of Carrefour hypermarchés France, with all assets and corresponding debts, to the applicant company.

In a judgment of 12 April 2012, the Orléans Court of Appeal ordered Carrefour France to pay a civil-law fine of 60,000 euros. Carrefour France appealed on points of law, arguing that in imposing the sanction of a civil-law fine for acts attributable to Carrefour hypermarchés France, the Court of Appeal had breached the rule that punishment should be applied to the offender only and not to other persons. The Court of Cassation dismissed the appeal.

Relying on Article 6 § 1 (right to a fair hearing) and Article 6 § 2 (presumption of innocence), the applicant company complains about the civil fine imposed on it for acts attributable to Carrefour hypermarchés France.

[Ilinca v. Romania \(no. 50882/15\)](#)

The applicant, Ion Ilinca, is a Romanian national who was born in 1967. He lives in Bălilești (Romania).

The case concerns the withdrawal of a permit authorising the possession of firearms.

In 2008 Mr Ilinca obtained a permit authorising him to acquire and possess firearms, following which he bought a revolver, a hunting rifle and ammunition.

In 2013 the firearms authority informed him that the permit had been withdrawn as he represented a threat to public order, national security and to the physical integrity of individuals. Mr Ilinca disputed the decision but his case was dismissed by the court of Argeș, which noted that between 2007 and 2010 Mr Ilinca had received two fines for a breach of the peace, indecent conduct and traffic offences.

In 2015 that judgment was upheld by Pitești Court of Appeal, which noted among other things that the offences in question, even though they had been committed without violence, showed that Mr Ilinca represented a threat to public order. It further noted that secret information had been taken into account by the firearms authority to justify the withdrawal of the permit. That information had been admitted in evidence but Mr Ilinca had not been given access to the file. The Court of Appeal referred to this information in general terms to avoid breaching its confidentiality.

Relying on Article 6 (right to a fair hearing), Mr Ilinca complains that the decisions of the domestic courts contained insufficient reasoning and were based on information to which he did not have access.

J.D. and A v. the United Kingdom (nos. 32949/17 and 34614/17)

The applicants, J.D. and A, are two British nationals.

The case concerns their complaint that new rules on housing benefit discriminated against them, on the grounds of disability in the first applicant's case and on gender in the second.

Both applicants live in social housing and receive housing benefit to pay their rent. After a new regulation was introduced in 2012, their housing benefit was reduced because they were found to have one more bedroom than they were entitled to under the regulation.

The first applicant, J.D., has a specially adapted property as she lives with her severely disabled daughter. The two of them live in a three-bedroom property.

The second applicant, being at risk of extreme domestic violence, was included in a "Sanctuary Scheme", which also meant that there were some adaptations to her property, including the installation of a "panic room" in the attic for herself and her son with whom she lives in a three-bedroom house.

Both applicants applied for Discretionary Housing Payments ("DHPs") to cover the shortfall in rent following the introduction of the regulation in 2012 and received DHP awards on a temporary basis.

They began court proceedings over the housing benefit decisions on the grounds of discrimination, arguing that the reduction in rent put them in precarious circumstances which were not remedied by the discretionary payments under the DHP scheme. The cases went to appeal and then to the Supreme Court, which delivered its judgment in November 2016, dismissing their claims.

The Supreme Court held that the lower courts had been right to apply the test of "manifestly without reasonable foundation" for the discriminatory treatment of the applicants and essentially found that the discretionary payment scheme had been appropriate to deal with their cases.

The first applicant complains of discrimination on the basis of her daughter's disability, relying on Article 14 (prohibition of discrimination) in conjunction with Article 8 (right to respect for private and family life) and Article 1 of Protocol No. 1 (protection of property).

The second applicant complains of discrimination on the basis of her gender as the victim of gender-based violence, relying on Article 14 in conjunction with Article 8.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 22 October 2019

Name	Main application number
Kožul and Others v. Bosnia and Herzegovina	38695/13
Bădoiu v. Romania	33809/16
Constantinovici v. Romania	29405/16
El Ozair v. Romania	41845/12
Stroea v. Romania	76969/11
Barsova v. Russia	20289/10
Konstantinov and Others v. Russia	15364/11
Kuratov and Others v. Russia	24377/15
Lapshina and Others v. Russia	65031/16

Name	Main application number
Sevastyanov v. Russia	66355/11

Thursday 24 October 2019

Name	Main application number
Kolev v. Bulgaria	38482/11
Balogh v. Hungary	61115/15
Implom v. Hungary	8649/15
Paraizs v. Hungary	51716/15
Schmied v. Hungary	27606/17
Szigeti and Szigetiné Vasanits v. Hungary	30856/15
Z.E. v. Hungary	1388/13
Z.T. v. Hungary	22945/15
Ciociu v. Romania	46797/16
Gherghe and Gună v. Romania	32619/08
Gogan v. Romania	41059/11
Mărgărit and Others v. Romania	17500/15
Memet and Others v. Romania	16401/16
Kukaj v. Slovenia – Rectification	49670/13
Samoylenko v. Ukraine	45050/10
Shtepa v. Ukraine	16349/17
Sirenko and Others v. Ukraine	22964/11
Yakushchenko v. Ukraine	57706/10

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.